

Meteorological station, Mini radio, Global Position System, Talkie walkie, Telemeter

Produit : Electronic / Measuring devices

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Updated at : 12/02/2026 11:44:59

Downloaded at : 27/03/2026 12:21:57

CANADA

Product's definition

Category

In which category the product is classified ?

"Radio apparatus", "Interference-causing equipment" and "Radio-sensitive equipment" under the Radiocommunication Act.

"Consumer Product" under the Consumer Product Safety Act.

"Energy-using product" under the Energy Efficiency Act (Division 9, Electronic Products).

"Electrical product" under the Canada Electric Code.

NOTE: This subcategory does not cover dangerous goods. However, if these products come with batteries, additional requirements would apply under the Transportation of Dangerous Goods Act. If this is the case, Please see 'Electronic/Measuring Devices - Batteries' subcategory for more information.

Regulations Cited in this Card:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>
- Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

Transportation of Dangerous Goods Act, SC 1992, c 34, <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>
Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>
- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

For Provincial Legislation for Energy-using Products, see 'Electronic/Measuring Devices - Chargers' subcategory.

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

For definitions applicable to Consumer Products, Electrical Products, and Energy-using products, please refer to 'Electronic/Measuring Devices - Chargers' subcategory.

Radiocommunications Act

- Radio apparatus, defined as “a device or combination of devices intended for, or capable of being used for, radiocommunication”;

- Interference-causing equipment, defined as “any device, machinery or equipment, other than radio apparatus, that causes or is capable of causing - interference to radiocommunication”;

- Radio-sensitive equipment, defined as “any device, machinery or equipment, other than radio apparatus, the use or functioning of which is or can be adversely affected by radiocommunication emissions”.

If a product meets one of the above definitions, it will be subject to the Radiocommunication Regulations, and will be further classified as either Category I or Category II equipment. Whether an item falls in to Category I or Category II is determined based on its technical specifications. The classification is established by the Radiocommunication Regulations.

Additional Regulations Cited:

Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

- Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html

- Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Comments

Comments

In Canada, there are requirements applicable to all consumer products, including meteorological stations, mini radios, global positioning systems, walkie talkies, and telemeters (referred to as “Consumer products”). There are also requirements applicable to all electrical equipment (referred to as “electrical equipment”). Next, there are requirements applicable to items subject to the Radiocommunication Regulations (referred to as “radio or interference-causing equipment”). Finally, there are requirements applicable to items subject to the Energy Efficiency Regulations (referred to here as “Items subject to the Energy Efficiency Regulations”).

For the requirements applicable to each of these categories of items, please refer to the “Electronic/Measuring Devices – Chargers” subcategory.

Meteorological stations, mini radios, global positioning systems, walkie talkies, and telemeters will be subject only to the requirements applicable to the category or categories into which they fall.

With regards to products subject to the Energy Efficiency Regulations at the provincial level, please note that in addition to the legislation provided in the 'Electronic/Measuring Devices – Chargers' section, meteorological stations, mini radios, GPS devices, walkie talkies and telemeters could also be subject to provincial legislation.

* Please note, however, that more information regarding the nature, composition, etc. of each specific product would be necessary in order to make a determination as to which category the product falls under and which regulatory regimes apply to the product. Please note that additional regulatory and/or permit requirements may also apply depending on the product's composition, nature, etc.

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

Mandatory labelling on product

What are the mandatory labelling on the product ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

See "Electronic/Measuring Devices - Chargers" subcategory.

Radio equipment

The Radiocommunication Regulations state that Category I and II products must be labelled in accordance with the respective standard. Label must show that applicable standards are met.

All Category I equipment for use in Canada must be labelled with Hardware Version Identification Number (HVIN formerly model number) and certification number. The HVIN and the certification number shall be permanently indicated on the exterior of the product or displayed electronically according to e-labelling requirements.

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

See "Electronic/Measuring Devices - Chargers" subcategory.

Radio or interference-causing equipment

Additional requirements may apply to radio apparatuses, interference-causing equipment, and radio-sensitive equipment. Such requirements are established by the rules applicable to each type of device.

Additional Regulations Cited:

Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

- Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html
- Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?

Radio equipment
Notice requirements may apply to radio apparatuses, interference-causing equipment, and radio-sensitive equipment. Such

Warnings - General ones

Are general warnings required ? If yes, which ones ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

Radio or interference-causing equipment

Additional notice requirements may apply to radio apparatuses, interference-causing equipment, and radio-sensitive equipment. Such requirements are established by the rules applicable to each type of device.

Additional Regulations Cited:

Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

- Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html
- Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Radio or interference-causing equipment

Specific requirements may apply to radio apparatuses, interference-causing equipment, and radio-sensitive equipment depending on the technical classification of the equipment.

Additional Regulations Cited:

Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

- Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html
- Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

See "Electronic/Measuring Devices - Chargers" subcategory.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

See 'Electronic/Measuring Devices - Chargers' subcategory.

Individuals and corporations that do not comply with the Regulations may face charges under the Radiocommunication Act. An individual may be fined up to \$5,000 and/or face one year in prison. Corporations can be fined up to \$25,000.

Additional Regulations Cited:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>

Comments

Comments

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

See "Electronic/Measuring Devices - Chargers" subcategory.

Products that meet the definition of Category I equipment require a Technical Acceptance Certificate (see 'Certifications' section) include :

- electronic products
- mobile phones
- wireless local area networking equipment
- Bluetooth devices
- remote control transmitters
- land mobile radio transmitters
- wireless medical telemetry transmitters
- cordless telephones
- walkie-talkies
- electronic products
- power adapters

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

Please refer to the "Electronic/measuring devices – Chargers" section of My Conformity Box for the applicable requirements.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Radiocommunications Act

Equipment must meet technical regulations and requires certification by Innovation, Science and Economic Development Canada (ISED) or a Certification Body. The applicable technical standard will depend on the product in question, and will be set out in the Category I or Category II Requirements under the Radiocommunications Act.

Category I equipment comprises of radio apparatus for which a technical acceptance certificate (TAC) is required pursuant to subsections 4(2) of the Radiocommunication Act and 21(1) of the Radiocommunication Regulations. A TAC may be issued by the Certification and Engineering Bureau of ISED or a certificate may be issued by a recognized certification body. Category II equipment comprises of radio apparatus for which standards have been prescribed, but for which a TAC is not required. Category II equipment is certification exempt. Therefore, a TAC from ISED or a certificate from a certification body is not required, pursuant to subsection 4(3) of the Radiocommunications Act. The manufacturer and/or importer shall ensure compliance with all applicable procedures and standards for Category II equipment.

Inquiries about applicable standards may be submitted online using the General Inquiry form. Inquiries can also be sent by email, or by mail to ISED.

Additional Regulations Cited:

Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

A full list of standards from ISED is found here: https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf06128.html

- Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html

- Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Electrical aspects

What are requirements regarding electrical aspects ?

Inflammability

Are there any specific requirements to ensure inflammability?

Hygiene

What are the rules regarding hygiene ?

Nil.

Radioactivity

What are the rules regarding radioactivity ?

Radio or interference-causing equipment

Specific requirements may apply to radio apparatuses, interference-causing equipment, and radio-sensitive equipment depending on the technical classification of the equipment.

Additional Regulations Cited:

Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html

Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Radio or interference-causing equipment

Specific testing requirements may apply to the standards applicable to radio apparatuses, interference-causing equipment and radio-sensitive equipment. Such requirements are established by the rules applicable to each type of device.

Test results indicating that Category I equipment meets the prescribed standards must be provided to Innovation, Science and Economic Development Canada. With regard to Category II equipment, the manufacturer, importer, seller, etc. must ensure that its goods meet the applicable requirements. Testing must be carried out as necessary. Test results must be made available to Innovation, Science and Economic Development Canada, if the Department requests this information.

Additional Regulations Required:

Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html

Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Under the Radiocommunications Act

Violation of the act by manufacturing, importing or selling products that do not comply with the prescribed standards, or that do not have a Technical Acceptance Certificate can result in a maximum fine of \$25,000 or imprisonment of one year, or both. The maximum penalty depends on the section that is violated.

The person who violated the act is liable for Administrative Monetary Penalties, up to a maximum of \$10,000,000 on first offence.

Additional Regulations Cited:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>

Radiocommunication Regulations (SOR/96-484), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-96-484/index.html>

Comments

Comments

Nil.

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Technical Acceptance Certificate

Anyone who wishes to manufacture, import, or sell Category I Equipment in Canada must obtain a Technical Acceptance Certificate from Innovation, Science and Economic Development Canada (ISED). To do so, the applicant must demonstrate that the equipment meets all applicable standards, and must provide test results illustrating this.

Additionally, every device classified as Category I equipment must be approved by ISED. Depending on the nature of the device to be certified, this document is to be read in conjunction with either the Radio Standards Specifications, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf06129.html and the Broadcasting Equipment Technical Standards, available at http://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf06125.html

In order to reduce the burden on manufacturers and importers and to expedite the process of certification in Canada, ISED will, in some cases, accept reports which show that equipment complies with the U.S. Federal Communications Commission ("FCC") standards. However, the applicant must indicate how FCC standards compare to Canadian standards for this equipment. Where there are differences between the technical standards of Industry Canada and the FCC, supplementary test results will be required.

The manufacturer or importer of Category II equipment must ensure that it meets all the required standards for that type of equipment. Testing must be carried out as necessary.

Process for Certification

Certification of a product requires various steps and documents which are detailed in RSP-100. The product must comply with Canadian regulations and standards. The application can be submitted electronically, using the Equipment Certification Services on the Spectrum Management System website. Generally, applicants utilize the expertise of Testing Laboratories and Certification Bodies to obtain certification with Canada.

A report showing the results of all tests performed on the equipment must be submitted with the TAC application

The list of Category I radio equipment that has been certified for use in Canada is found in the Radio Equipment List (REL).

Additional Regulations Cited:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>

Details on the certification process are provided in ISED's guide Certification of Radio Apparatus and Broadcasting Equipment, available at <https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/sf01130.html>

ISED Guidance Document - https://www.ic.gc.ca/eic/site/ceb-bhst.nsf/eng/h_tt00051.html

ISED Radio Equipment List - <https://sms-sgs.ic.gc.ca/equipmentSearch/searchRadioEquipments?execution=e1s1&lang=en>

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Radio or interference-causing equipment

Specific requirements may apply to radio apparatuses, interference-causing equipment, and radio-sensitive equipment depending on the technical classification of the item in question.

Testing Laboratories and Certification Bodies that are recognized by ISED are listed on ISED website. Testing laboratories test the products according to the required Canadian regulations for radio certification with ISED. Certification Bodies are

recognized independent organizations who conduct certification of radio-communication equipment for the purpose of sale in Canadian market.

Additional Regulations Cited:

Please refer to the requirements applicable to the various products outlined in the:

Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html

Category II Equipment Standards List, available at http://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Comments

Comments

The governing body is ISED. CSA International develops applicable testing standards. As in the U.S., non-intentional radiators are subject to self-certification by the manufacturer or by a lab appointed by the manufacturer. After testing, a report is prepared and a bilingual notice or label is included in the user's manual or inserted in the carton, indicating compliance to Class A (non-domestic) or Class B (domestic low-voltage) requirements. The manufacturer or importer must keep a copy of the report or test record on file for five years, and must be prepared to show it to ISED upon request. Intentional radiators and receivers (including telecommunication devices) must be formally certified by an accredited testing organization.

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

Nil.

Comments

Comments

Nil.

Importation rules

General rules

What are the general rules in order to import the product ?

Additional Regulations Cited:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>
Details on the certification process are provided in ISED's guide Certification of Radio Apparatus and Broadcasting Equipment, available at <https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/sf01130.html>
ISED Guidance Document - https://www.ic.gc.ca/eic/site/ceb-bhst.nsf/eng/h_tt00051.html
ISED Radio Equipment List - <https://sms-sgs.ic.gc.ca/equipmentSearch/searchRadioEquipments?execution=e1s1&lang=en>

Documents

What are the required documents ?

Time period

In which time period may we obtain the right to import ?

Administration

What is the administration in charge of importations ? Name and address ?

Health Canada Consumer Product Safety Office
Via email (hc.cps-spc.sc@canada.ca)
Telephone at 1-866-662-0666

Innovation, Science and Economic Development Canada
Engineering, Planning and Standards Branch
235 Queen Street
Ottawa, Ontario, K1A 0H5
Canada
Attention: Regulatory Standards Directorate

Comments

Comments

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

Radio or interference-causing equipment
Pursuant to the Radiocommunication Act, an inspector appointed by the Minister of Industry may, at any reasonable time, enter onto premises which it believes on reasonable grounds to contain documents, information, or anything else relevant, in order to ensure compliance with the Radiocommunication Act. The inspector may make use of equipment located in the premises, copy documents, and remove items or documents.

Additional Regulations Cited:

Radiocommunication Act (R.S.C., 1985, c. R-2), <https://laws-lois.justice.gc.ca/eng/acts/r-2/>

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

Nil.

Documents

What are the required documents ?

Nil.

Delay

What is the delay to obtain the right to commercialize ?

Nil.

Display in store

Is there some specific rules on the way to display the product in store ?

Display on internet

Is there some specific mentions to display the product on internet ?

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

Comments

Comments

Nil.

Administration

What is the administration in charge of commercialization ? Name and address ?

Innovation, Science and Economic Development Canada
3701 Carling Avenue (Building 94)
P.O. Box 11490, Station "H", Ottawa, ON K2H 8S2
Tel: 613-990-4218
Fax: 613-990-4752
Email: ic.certificationbureau-bureauhomologation.ic@canada.ca

Inquiries can be submitted using the General Inquiry form - <https://www.ic.gc.ca/eic/site/ceb-bhst.nsf/frm-eng/EABV-9X4GEH>

Documents